

**SUPERIOR COURT OF SAN MATEO COUNTY****Probate - Probate****Courtroom 2C****Hearing Date: 09/15/2026 - 09:00 AM**

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Judge: Novak, Lisa A.**Clerk:** Ortega, Alexandrina**Reporter:** Conde, Wendy

25-PRO-00637	Guardianship of Naomi Maidelin Farias Pacheco	Continued on 06/12/2026 Continued on 06/12/2026
Line 6, 7	Petitioner: Farias Pacheco, Naomi Maidelin (TESORO, GERVY JHON) Ward: Farias Pacheco, Naomi Maidelin Proposed Guardian: Pristine Kennedy, Jessica	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed) The court intends to GRANT both petitions		

25-PRO-00900	IN THE MATTER OF: THE ZENAIDA T. FLORES REVOCABLE LIVING TRUST DATED SEPTEMBER 1, 2002, RESTATED THEREAFTER ON OCTOBER 10, 2024	NOTICE OF MOTION AND MOTION FOR PROTECTIVE ORDER PETITIONER ZENAIDA T. FLORES' NOTICE OF MOTION AND MOTION FOR RELIEF FROM WAIVER NOTICE OF MOTION AND MOTION FOR ORDER: 1. Compelling Attendance and Testimony at Deposition; 2. Imposing Monetary Sanctions; and 3. Appointment of Discovery Referee at Petitioner' s Cost
Line 8, 9, 10	Petitioner: FLORES, ADRIAN (COASTON, TONI NICOLE ROBINSON, RAY) Petitioner: Flores, Zenaida T. (SANCHEZ, ERNESTO WALTER, LOGAN RAE) Respondent: Flores, Adrian (ROBINSON, RAY) Respondent: Flores, Nathan (ROBINSON, RAY)	Motion hearings Motion hearings Motion hearings



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Tentative Ruling:

APPEARANCE OPTIONAL

Motion for Order: 1. Compelling Attendance and Testimony at Deposition; 2. Imposing Monetary Sanctions; and 3. Appointment of Discovery Referee at Petitioner's Cost is GRANTED-IN-PART and DENIED-IN-PART.

The request for order compelling Petitioner Zenaida T. Flores to attend and provide testimony at deposition is GRANTED.

The request for order appointing a discovery referee is DENIED.

The requests for sanctions are DENIED.

Respondents Nathan Flores and Adrian Flores' request to strike the opposition is DENIED per the Court's broad inherent authority and discretion regarding court management. Petitioner Zenaida Flores' counsel is admonished to abide by filing deadlines set forth in the CCP and CRC 3.1113(f). Failure to do so in the future will result in sanctions payable to the court and attorneys' fees if requested.

Petitioner Zenaida T. Flores' Motion for protective Order is GRANTED-IN-PART and DENIED-IN-PART.

The request that the deposition of Petitioner Zenaida T. Flores be conducted by written questions pursuant to Code of Civil Procedure section 2028.010, in lieu of oral examination is DENIED.

The deposition of Petitioner Zenaida T. Flores by oral examination is limited to no more than two (2) sessions of thirty (30) minutes each, conducted via Zoom videoconference so that Ms. Flores may remain at her Millbrae residence, with any costs attributable to the multi-session format borne by Petitioner. Any costs attributable to the multi-session format shall be borne solely by Petitioner.

Nathan Flores and Adrian Flores' request for sanctions is DENIED.

Zenaida Flores' Motion for Relief from Waiver of Objections to Requests for Admission, Set One, and Form Interrogatories, Set One, is DENIED. The Court cannot determine that the discovery response at issue is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230 because no response was filed. Therefore, the motion does not satisfy the condition set forth in CCP 2033.280(a)(1).

The sanctions requested by Respondent Nathan Flores in the amount of \$3,375 are ordered to be paid by Petitioner Zenaida T. Flores to Respondent Nathan Flores within 30 days.



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26-PRO-00488	IN THE MATTER OF THE FREDERICK A. FORSTER TRUST DATED JANUARY 13, 1995	TRUSTEE'S PETITION FOR INSTRUCTIONS [PROBATE CODE SECTIONS 17200 et seq]
Line 11	Petitioner: Evans, Victoria (LYTLE, BRETT S.) Decedent: Forster, Frederick A	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL (Zoom allowed)

The Petition for Instructions is DENIED as every request made is in contradiction to what appears to be the intent of the Settlor. The request for instructions and confirmation that the Trustee may distribute the Trust assets directly the grandchildren who are under the age of 25 is DENIED for failure to provide good cause as to why the Settlor's intent should not be respected. The only argument made is that these four beneficiaries are capable of handling their own financial affairs. That does not overcome the intent of the settlor.

The request that the Court determine that the transfer to Daniel Forster was a gift and not a loan is DENIED because the facts and information provided appear to support a finding that the transfer to Daniel Forster was a loan.

The request that the Court determine that the transfer to Katherine Callan was a gift and not a loan is DENIED because the facts and information provided support a finding that the transfer to Katherine Callan was a loan.

The request that the Court determine that the transfer to Joseph Forster was a loan of no value and instruct Petitioner to forgo efforts to collect on the alleged loan is DENIED because the facts and information provided do not support this request.

The request for the Court to instruct that the Trust continue its litigation against Ms. Daetwyler to recover fees and costs incurred in clearing the Property title in the approximate amount of \$60,501.96 is DENIED without prejudice due to insufficient information provided. There is insufficient information provided for the court to determine that it should instruct the Trustee to continue in this litigation; it is entirely up to the Trustee whether she believes this is a proper pursuit on behalf of the Trust.

The Petition to Confirm Property as Trust Assets is CONTINUED to December 1, 2026 at 9:00 a.m. for Petitioner to:

- (1) Comply with Probate Code 851 and use DE-115; and
- (2) Given that the prayer of the Petition requests that the Court confirm the property listed on the Schedule A be confirmed to the Trust, Petitioner must clarify which property on the Schedule A